

		license, not equipment. One invoice appears to be for one piece of machinery plus multiple other items. Application is denied without prejudice. The property sought to be recovered must exist in some concrete or tangible form, capable of identification and seizure. (Lamus v. Engwicht (1919) 39 Cal.App. 523, 529.) Here, the twenty-four pages of invoices comprising attachment 4 to the application for writ does not render the property identifiable for the Court, the Sheriff, or Defendant. Court to give notice.
112	Nguyen v Le	OFF CALENDAR – REFERRED TO IDC
113	Robicheaux vs. Rowshan, 2022-01261647	MOTION FOR LEAVE TO FILE AMENDED CROSS-COMPLAINT – GRANTED The liberal policy of permitting amendments to pleadings virtually requires that this Court grant the motion. Whether the proposed amendments to the cross-complaint violate the doctrine of judicial estoppel is not properly addressed by the Court in ruling on this motion. The proposed third amended cross-complaint attached as exhibit 1 to the declaration of Jessie Gessin shall be filed within 5 court days of the date of this order.
114	Ronald W. Makarem, A Professional Corporation vs. Get Buzzed LLC, 2025-01531850	DEMURRERS – OVERRULED IN PART AND SUSTAINED IN PART WITH 20 DAYS LEAVE TO AMEND MOTION TO STRIKE – GRANTED IN PART WITH 20 DAYS LEAVE TO AMEND AND DENIED IN PART Ronald W. Makarem, APC sued Get Buzzed LLC dba Bee the Buzz Media (“Get Buzzed”), Brian Meikle, and Lisa Mullins for 1) Fraud & Deceit; 2) Breach of Contract; 3) Violation of Penal Code §496; 4) Conversion; 5) Negligence’ and 6) Violation of UCL, arising out of defendants’ failure to properly provide contracted-for marketing services. Plaintiffs’ first amended complaint (FAC) is the operative complaint. Defendant Meikle demurs to the entirety of the FAC. Get Buzzed and Mullins demur to the third through sixth causes of action, and move to strike portions of the FAC.

		<u>Uncertainty</u> “[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. [Citations.] A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures. [Citations] [¶] [U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend. [Citations.]” (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695 (internal quotation marks omitted).) Here, none of the causes of action in the FAC fails on the basis of uncertainty. The factual allegations are not so incomprehensible that Meikle cannot reasonably respond, as evidenced by the detailed arguments made by Meikle on the alternative grounds that the FAC fails to plead facts sufficient to constitute a cause of action. <u>First Cause of Action for Fraud & Deceit</u> To plead a fraud-based cause of action, the following elements must be alleged: (1) misrepresentation (false representation or concealment); (2) knowledge of falsity; (3) intent to deceive; (4) justifiable reliance; and (5) resulting damage. (Lazar v. Superior Court (1996) 12 Cal.4th 631, 638; Engalla v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951.) For causes of action for intentional and negligent misrepresentation, each element must be pled with specificity. (Lazar, supra, 12 Cal.4th at p. 645.) The particularity requirement necessitates pleading facts that show how, when, where, to whom, and by what means the representations were tendered. (Ibid.) The FAC sufficiently alleges the how, when, where, to whom and by what means the alleged representations by
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		Meikle were tendered. (See FAC ¶43.) The demurrer to the first cause of action is OVERRULED. <u>Second Cause of Action for Breach of Contract</u> Meikle demurs to the second cause of action for breach of contract. However, that cause of action is only alleged against Bee the Buzz. As there is no breach of contract cause of action alleged against Meikle, the demurrer to the second cause of action is OVERRULED. <u>Third Cause of Action for Penal Code § 496</u> Meikle and Mullins contend that Plaintiff has not pled facts sufficient to constitute a cause of action for violation of Penal Code §496. Penal Code §496(a) provides, in relevant part: “Every person who buys or receives any property that has been stolen or that has been obtained in any manner constituting theft or extortion, knowing the property to be so stolen or obtained, or who conceals, sells, withholds, or aids in concealing, selling, or withholding any property from the owner, knowing the property to be so stolen or obtained, [is subject to incarceration]” “Theft” includes defrauding any other person of money. (P.C. §496(a).) Penal Code §496(c) authorizes any person who has been injured by a violation of subdivision (a) to bring an action for three times the amount of actual damages, if any, sustained by the plaintiff, costs of suit and reasonable attorney’s fees. A violation of the statute requires some form of criminal intent beyond mere proof of nonperformance or actual falsity. (See <i>Siry Investment LP v. Farkenhondehpour</i> (2022) 13 Cal.5th 333, 361-362.) Here, the FAC sufficiently alleges that Meikle provided fabricated fact sheets, background checks and HIPAA releases to Plaintiff, emailed Plaintiff fabricated medical records, and as a result obtained or aided in withholding \$1.25 million from Plaintiff, knowing it had been obtained through theft. (FAC ¶¶13, 19 , 63-66.)
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	As to Mullins, the FAC alleges she “concealed, withheld, or added [sic] in concealing or withholding property from Plaintiff, specifically the \$1.25 million of Plaintiff’s funds, knowing the property to be stolen or so obtained.” (FAC ¶ 66.) Elsewhere in the FAC, there are detailed allegations that Mullins was an officer acting on behalf of Get Buzzed; and that she sent out fabricated medical reports to deceive Plaintiff and cover up Defendants’ failure to deliver leads as promised. (FAC ¶ 23.) The demurrer to the third cause of action is OVERRULED. <u>Fourth Cause of Action for Conversion</u> The elements of conversion are: “(1) the plaintiff’s ownership or right to possession of the property; (2) the defendant’s conversion by a wrongful act or disposition of property rights; and (3) damages.” (Lee v. Hanley (2015) 61 Cal.4th 1225, 1240.) Money can be the subject of an action for conversion if a specific sum capable of identification is involved. (Weiss v. Marcus (1975) 51 Cal.App.3d 590, 599.) Here, Plaintiff has sufficiently alleged Defendants, through the use of fraudulent promises, obtained \$1.25 million of Plaintiff’s money. (FAC ¶ 24.) Defendants refused to return the money even after Plaintiff demanded they do so. (Ibid.) This is a discrete sum that was previously in the possession of Plaintiff, as opposed to a mere contractual right to payment, which would not support a conversion claim. (See Voris v. Lampert (2019) 7 Cal.5th 1141, 1151-1152; Farmers Ins. Exchange v. Zerlin (1997) 53 Cal.App.4th 445, 452.) As to Mullins, the FAC sufficiently alleges that she personally participated in the scheme and profited from the funds. (FAC ¶¶ 13, 23, 26.) Meikle contends this cause of action is barred by the three year statute of limitations set forth in Code of Civil Procedure section 338. However, the money is alleged to have been transferred to Defendants between April 16 and July 25, 2024. (FAC ¶ 24.) Thus, the statute of
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		limitations would have run no earlier than April 16, 2027. This action was filed on December 8, 2025. The demurrer to the fourth cause of action is OVERRULED. <u>Fifth Cause of Action for Negligence</u> The economic loss doctrine “bars recovery in negligence for pure economic losses when such claims would disrupt the parties’ private ordering, render contracts less reliable as a means of organizing commercial relationships, and stifle the development of contract law.” (Sheen v. Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905, 915.) Purely economic losses are those which did not arise from a physical injury to person or property. (Southern California Gas Leak Cases (2019) 7 Cal.5th 391, 398.) Here, Plaintiff alleges a contractual relationship between itself and Get Buzzed. (FAC ¶ 54.) The fifth cause of action for negligence alleges that “Defendants breached the standard of care owed to Plaintiff, and did not perform the marketing campaign with care, skill, reasonable expedience, and faithfulness.” (FAC ¶ 85.) This is nothing more than a breach of the duties owed by way of the contractual relationship between Plaintiff and Get Buzzed. Further, the damages sought are entirely economic: the \$1.25 million paid under the contract and lost legal fees from cases that did not materialize. (FAC ¶¶ 86-88.) Plaintiff asserts that both contract and tort claims may be pled, but Plaintiff has not pled anything sounding in negligence that is outside the scope of the contractual relationship. While Mullins and Meikle are not alleged to be in privity of contract with Plaintiff, courts in California are loathe to impose duties of care on non-contracting parties to guard against “purely economic losses.” (Southern California Gas Leak Cases at p. 400.)
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	Under the ordinary duty analysis of <i>Biakanja v. Irving</i> (1958) 49 Cal.2d 647 and <i>J'Aire Corp. v. Gregory</i> (1979) 24 Cal.3d 799, Plaintiff has not presented any compelling policy reasons to impose a duty upon Mullins or Meikle here. The demurrers as to the fifth cause of action for negligence are SUSTAINED with 20 days leave to amend. <u>Sixth Cause of Action for Unfair Competition</u> Defendants contend that the cause of action for unfair competition is derivative of the other causes of action alleged in the FAC and, because those causes of action fail, so too must this cause of action. As the Court has overruled the demurrers to all but one cause of action, the demurrer to the sixth cause of action is also OVERRULED. contracting parties to guard against “purely economic losses.” (Southern California Gas Leak Cases at p. 400.) <u>Motion to Strike</u> Defendants request that the Court strike Paragraph 6(b) of the Prayer for Relief, which seeks “disgorgement of Defendants’ unlawful and ill-gotten profits, according to proof” under the Sixth Cause of Action for unfair competition. In opposition, Plaintiff concedes that this wording is imprecise. Because the FAC is ambiguous, in that it seeks “disgorgement of Defendants’ unlawful and ill-gotten profits,” rather than explicitly limiting its prayer to restitution, the motion is GRANTED with 20 days leave to amend as to Paragraph 6(b) of the Prayer for Relief. <u>Punitive Damages Allegations and Prayer</u> Defendant Get Buzzed moves to strike portions of Paragraphs 52 and 82 of the FAC as well as Paragraphs 1(e) and 4(d) of the Prayer for Relief for punitive damages. These paragraphs correspond to the first cause
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		of action for fraud & deceit and the fourth cause of action for conversion. Get Buzzed contends that no facts are alleged establishing that any officer, director, or managing agent of Get Buzzed committed, authorized, or ratified the alleged conduct, as required by Civil Code section 3294(b). This contention is not well taken. Defendant Meikle is alleged to be “the founder, CEO, and an owner of BEE THE BUZZ” as well as its President. (FAC ¶¶ 5, 26.) Meikle is further alleged to have personally made false promises, personally emailed Plaintiff a forged medical record, and personally received and refused Plaintiff’s written demand for a refund. (FAC ¶¶ 11, 20, 43, 19, 42, 46, 26.) The motion is DENIED as to the cited punitive damages allegations. Moving Parties to give notice.
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